

appears that the facts lie more within defendant's knowledge than plaintiff's: i.e., less specificity is required where "defendant must *necessarily possess full information* concerning the facts of the controversy.'" (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 6:147 citing *Miles v. Deutsche Bank Nat'l Trust Co.* (2015) 236 Cal.App.4<sup>th</sup> 394, 403-404.) Plaintiff explains that the underwriting conditions and internal practices are within defendants' exclusive knowledge so, specificity is not required. As discussed above, concealment is not sufficiently alleged. The demurrer is sustained with thirty days' leave to amend.

3.

| CASE #      | CASE NAME                                              | HEARING NAME               |
|-------------|--------------------------------------------------------|----------------------------|
| CVRI2507157 | GELLER VS<br>AUTOMOBILE CLUB OF<br>SOUTHERN CALIFORNIA | MOTION TO STRIKE COMPLAINT |

**Tentative Ruling:** The motion to strike is DENIED as moot.

4.

| CASE #      | CASE NAME        | HEARING NAME                                                                                                                                                                                                            |
|-------------|------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVRI2601718 | IQBAL VS HULSMAN | PETITION FOR AN ORDER<br>RELIEVING PLAINTIFFS FROM<br>GOVERNMENT ENTITY CLAIM<br>FILING REQUIREMENTS, OR IN<br>THE ALTERNATIVE, FOR AN<br>ORDER THAT PLAINTIFFS HAVE<br>SUBSTANTIALLY COMPLIED WITH<br>SAID REQUIREMENT |

**Tentative Ruling:** The Court DENIES the Petition.

Here, Petitioners filed a late claim with the County pursuant to Government Code section 911.4 within one year after the accrual of the claim. The inquiry turns to whether Petitioners' failure to present their claim was through mistake, inadvertence, surprise, or excusable neglect. Based on the evidence presented, Petitioners fail to establish their failure to timely file a claim was based on excusable neglect.

The showing required for relief on the grounds of "mistake, inadvertence, surprise or excusable neglect" is the same as required under Code of Civil Procedure section 473, subdivision (b), for relieving a party from a default judgment. (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.) "Cases in which relief on the basis of counsel's excusable neglect is granted generally involve plaintiffs who have diligently acted within the claims-filing limitation period (i.e., six months) to retain counsel..." and the neglectful conduct of counsel or counsel's staff is deemed "relatively minor." (*Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1782; *Leake v. Wu* (1976) 64 Cal.App.3d 668 [relief denied where counsel retained three weeks after accrual of cause of action did

not make any inquiry to determine that the defendant named in the plaintiff's complaint was a public employee].) The petitioner has the burden of proving by a preponderance of evidence the grounds for relief from the claim-presentation requirement. (*Rodriguez v. County of Los Angeles* (1985) 171 Cal.App.3d 171, 175.)

To show mistake or excusable neglect by a preponderance of the evidence, "[a] petitioner or counsel for a petitioner must show more than the mere failure to discover a fact until too late; he or she must establish the failure to discover that fact in the use of reasonable diligence." (*Munoz, supra*, 33 Cal.App.4th at 1783.) Relief has generally been denied where the plaintiff failed to take any action to pursue his or her claim during the claims-filing period, or where the conduct of plaintiff's retained counsel was unreasonable or dilatory. (*Ebersol, supra*, 35 Cal.3d at p. 437, fns. 10, 11.)

Here, despite Petitioners' assertions that their failure was due to staff mistake, the evidence shows that Ghalchi was acting as Petitioners' attorney within four days of the accident, having electronically opened the file on 7/8/25. (Ghalchi Decl., ¶ 5.) Counsel's declaration states that her intake employee, Habib Ghalchi, "neglected to categorize correctly to indicate that claims against a government entity were involved." (*Id.*) "As such, no further reminders were triggered in the Ghalchi Law's calendar to file the necessary government claim form on or before January 4, 2026, the 6-month date." (*Id.*) Counsel declares that her office only received the requested traffic report on 1/29/26, and she did not review or discover the mistake until 2/4/26. (*Id.* at ¶¶ 5-6.) The declaration, however, is silent as to when she requested the traffic report.

An attorney's failure to review files, oversee staff, or request a police report for more than 6 months is not the conduct of a reasonably prudent person. In *Leake, supra*, 64 Cal.App.3d 668, plaintiffs claimed they did not know or have reason to know that an anesthesiologist was a county employee even though the county hospital was named as a defendant. (*Id.*) The Court of Appeal found that the failure of plaintiffs' attorney to make a minimal inquiry into the matter is not the conduct of a reasonably prudent person or the type of mistake or neglect for which the statute affords relief. (*Id.* at 673.)

Here, Petitioners were rear-ended by an on-duty Deputy Sheriff driving a marked sheriff's vehicle. That gives clear and immediate notice of public entity involvement. There is no indication from either Petitioner denying such knowledge. Counsel's failure to perform basic discoveries and file a timely claim is not the conduct of a reasonably prudent person or the type of mistake or neglect that affords relief.

Therefore, the Court DENIES the motion for relief based on failure in establishing excusable neglect.

As to Petitioners' alternative request for an order on their substantial compliance, they made no substantive legal or factual arguments in their moving papers as to how the doctrine of substantial compliance applies. The Court DENIES the requested alternative relief.